

Kumar Share Brokers Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 November 2016 · Writ-C No. 54076 of 2016 · **Writ disposed; EE to decide pending multiplying-factor bill as Clause 6.5 application in four weeks.**

HEADNOTE

Writ challenging an electricity bill on the footing that the multiplying factor was wrongly applied. The Division Bench recorded that Clause 6.5 of the Electricity Supply Code, 2005 provides for rectification of the bill, and disposed of the petition by directing the Executive Engineer to treat the petitioners' pending application as a Clause 6.5 application, hear them, and pass an appropriate order within four weeks. The correctness of the multiplying factor was not decided on merits.

FACTUAL SUMMARY

Kumar Share Brokers Ltd. and another filed a writ in the Allahabad High Court against the State of U.P. and the electricity licensee. They contended that the multiplying factor on their electricity bill was incorrect, so the billed amount was inflated. An application on that grievance was already pending before the Executive Engineer. After hearing both sides, the Division Bench disposed of the writ without examining the bill on merits and sent the pending application to the Executive Engineer for decision under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill rectification via Executive Engineer

HOLDING

Clause 6.5 of the Electricity Supply Code, 2005 is the forum for rectification of an electricity bill, including a dispute that the multiplying factor is incorrect. A pending application before the Executive Engineer is to be treated as a Clause 6.5 application, processed after hearing, and decided by an appropriate order within four weeks; the writ is not the forum for that merits inquiry. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE MULTIPLYING FACTOR ON THE PETITIONERS' ELECTRICITY BILL WAS INCORRECT, AND WHAT AMOUNT WAS PAYABLE

Left to the Executive Engineer on the pending application treated as a Clause 6.5 objection. ¶ 1